



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/17/2026 - 09:00 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY OF SAN MATEO

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 17, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.

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20-PRO-01156	Conservatorship of LUPE PADILLA	THIRD ACCOUNT AND REPORT OF CONSERVATOR etc.
Line 1	Proposed Conservatee: PADILLA, LUPE (RUBENS, GREGORY J.) Petitioner: DESIMONE, PATRICIA (Pro Se) Petitioner: Lassahn, T. Anne (SIRACUSA, LAWRENCE) Conservatee: PADILLA, LUPE (RUBENS, GREGORY J.) Proposed Conservator: DESIMONE, PATRICIA (Pro Se) Proposed Conservator: Lassahn, T. Anne (SIRACUSA, LAWRENCE) Temporary Conservator: Lassahn, Anne (SIRACUSA, LAWRENCE) Objector: PADILLA, JAVIER	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Matter CONTINUED to 1/8/27 at 9:00 a.m., to be heard with the pending review.

22-PRO-00489	Conservatorship of Manota C. Lyons	SECOND ACCOUNT AND REPORT OF CONSERVATOR AND TRUSTEE etc,
Line 2	Proposed Conservatee: Lyons, Manota C. Petitioner: Dolch, Debra J. (DURRANS, KATHLEEN A.) Conservatee: Lyons, Manota C. Conservator: Dolch, Debra J. Temporary Conservator: Dolch, Debra J.	Petition Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Counsel to appear to discuss concerns over the longevity of funds available in the Trust, which have not been addressed. The Court is mindful that the Conservatorship estate has decreased significantly, but it appears that the Trust is financially secure. At Conservatee's age, the Court needs further information as to whether or not there truly is a risk of the longevity of the funds for support of the Conservatee, be it through the conservatorship estate or the trust.



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The Court previously denied the Second account and report, and request for fees. The denial was rooted in the request for fees, not the accounting itself. Petitioner should be prepared to address the concerns raised in the email from independent counsel 11/14/2025. These concerns are also set forth in independent counsel's report to the court, and include the following:

Ms. Dolch is requesting fees in both roles, trustee and conservator, in the amount of \$51,680. The trust accounting disbursement schedule shows four payments to Ms. Dolch, totaling \$6,232.50. It is not clear as to why Ms. Dolch paid herself four times and is now asking for additional fees. The four payments were made on April 24, 2023, July 14, 2023, November 17, 2023, and February 5, 2024. Ms. Dolch's invoice for trustee's services covers the period from April 4, 2023, through May 29, 2025.

Is the Petitioner intending to submit a revised fee request? If so, the Court would be prepared to address the Second Accounting anew. Finally the Court intends to decrease the bond on the Conservatorship estate to \$216,000.

22-PRO-01269	Conservatorship of LIGOURI JOHN LAWRENCE	Continued from 08/03/26 Seventh Account and Report by Co-Trustees, and Petition for Allowance of Attorney's Fees and Increase in Bond- Continued from 08/03/26
Line 3, 4	Proposed Conservatee: LAWRENCE, LIGOURI JOHN Petitioner: LAWRENCE, PHILIP (CAMPOPIANO, HEATHER L CAMPOPIANO, HEATHER L) Conservatee: LAWRENCE, LIGOURI JOHN Conservator: LAWRENCE, ANTHONY A (RONDON, BRIAN D. CAMPOPIANO, HEATHER L) Conservator: LAWRENCE, PHILIP (CAMPOPIANO, HEATHER L CAMPOPIANO, HEATHER L)	Conservatorship Review - Biennial Petition Hearing

Tentative Ruling:

NO APPEARANCE

Petition GRANTED absent cogent objection.



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24-PRO-01329	Conservatorship of Samuel Dylan Cabrera	
Line 5	Proposed Conservatee: Cabrera, Samuel Dylan Petitioner: Lacson Cabrera, Joyce (KUWAYTI, KENNETH A.) Conservatee: Cabrera, Samuel Dylan Conservator: Lacson Cabrera, Joyce (KUWAYTI, KENNETH A.)	Conservatorship Review - Annual
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

25-PRO-00122	Conservatorship of Beverly Rey	FIRST ANNUAL ACCOUNTING OF CONSERVATOR, PETITION FOR ITS SETTLEMENT AND REQUEST FOR FEES
Line 6, 7	Proposed Conservatee: Rey, Beverly Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (HAULK, JENNIFER L.) Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (HAULK, JENNIFER L.) Conservatee: Rey, Beverly Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE)	Conservatorship Review - Annual Annual Accounting of Conservator and Petition for Settlement
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The fees and reimbursements requested by the conservator and counsel are approved deferred until the court determines sufficient funds exist. The Court orders payment of \$850.00 for the current investigation, deferred until the court determines sufficient funds exist.		

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25-PRO-01295	Estate of Mark Howard Miyamoto	
Line 8	Petitioner: Miyamoto, Austin (TOMIOKA, GRANT T.) Petitioner: Miyamoto, Taylor (TOMIOKA, GRANT T.) Decedent: Miyamoto, Mark Howard Personal Representative: MIYAMOTO, AUSTIN Personal Representative: Miyamoto, Taylor Claimant: BANK OF AMERICA, N.A. Claimant: PACIFIC GAS AND ELECTRIC COMPANY	Motion to be Relieved as Counsel
Tentative Ruling: APPEARANCE OPTIONAL The Motion to be Relieved as counsel for co-administrator Austin Miyamoto is GRANTED. Attorney Tomioka shall continue in his capacity of counsel of record for co-administrator Taylor Miyamoto.		

26-PRO-00099	IN THE MATTER OF THE: PERLITA CORTEZ PEPA LIVING TRUST, DATED AUGUST 11, 2005	Petition for Instructions to Trustee to Transfer Title of Real Property in Trust Estate- Continued from 07/07/26
Line 9	Petitioner: Pepa, Dennis A (GRILLO, ANTHONY J.) Decedent: CORTEZ PEPA, PERLITA	Petition Hearing
Tentative Ruling: NO APPEARANCE Petition GRANTED absent cogent objection. Decedent's 25% interest in the property located at 36 Heath Court, Daly city CA is confirmed to the Trust.		



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26-PRO-00489	IN RE: WILLIE KWOK CHU CHAN AND DENISE TACK-FUN LEE REVOCABLE TRUST, DATED 12/07/2013	PETITION FOR CONFIRMATION OF TRUST ASSETS [Probate Code 850]
Line 10	Petitioner: Chan, Mary-Linda (ZHANG, VIVIAN) Decedent: CHAN, WILLIE KWOK CHU	Petition to Confirm Trust Assets (Heggstad)

Tentative Ruling:

NO APPEARANCE

Petition GRANTED absent cogent objection. Counsel is advised in the future to use the correct judicial council form, DE 115, rather than DE-120.

26-PRO-00512	Guardianship of Anderson Samuel Palacios Ramirez	
Line 11, 12	Petitioner: Oliva Leiva, Astrid Yulissa (CARDIEL, JANETT) Ward: Palacios Ramirez, Anderson Samuel Proposed Guardian: Oliva Leiva, Astrid Yulissa	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings

Tentative Ruling:

APPEARANCE ORDERED [ZOOM not allowed]

There are two procedural problems with the petitions: 1.) All consents submitted indicate that the individuals are consenting to the petition(s) filed 9/10/26, but the petitions at issue were filed 4/20/26. 2.) The proposed order re SIJF exceeds what is sought in the petition, and what the ward has set forth in his declaration. His petition indicates he is seeking a finding of abandonment as it pertains to only one parent, and his declaration does not support any finding of abandonment by his mother. Finally, as to the merits, petitioner does not provide any facts in support of claim that it would be dangerous for him to return to his home country. Both of his parents are residing there, so there is insufficient information on which to make a finding that it is in his best interests that he not return to his, or his parents', country of residence or last habitual residence. Petitioner and counsel are to address these issues.



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26-PRO-00532	IN THE MATTER OF JUDY D. SHIELDS TRUST	
Line 13	Petitioner: Shields, Shuan A. (WALTER, BRYAN R.) Decedent: Shields, Judy D.	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL Petition GRANTED absent cogent objection.		

26-PRO-00534	IN THE MATTER OF THE SOMERS 1995 LIVING TRUST, AS AMENDED AND RESTATED	FIRST ACCOUNT AND REPORT OF CO-TRUSTEE AND PETITION FOR: (1) SETTLEMENT OF ACCOUNT; AND (2) RATIFICATION AND APPROVAL OF ATTORNEYS FEES
Line 14	Petitioner: Nelson, Barbara (ROWE, JESSICA L.) Decedent: SOMERS, BIANCA R Decedent: SOMERS, RONALD D	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL Petition GRANTED absent cogent objection. Formal order required		



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26-PRO-00755	Estate of WILLIAM FRANCIS SIEMERS	Continued from 07/15/26 for filing of Objection or Competing Petition
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Line 15	Petitioner: FITZSIMMONS, ANGELA (BUSCH, ROBERT J., JR) Decedent: SIEMERS, WILLIAM FRANCIS Proposed Personal Representative: FITZSIMMONS, ANGELA	Probate of Will and Letters of Admin w/ Will Annexed w/ ATA
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Tentative Ruling:

APPEARANCE OPTIONAL

On 7/15/26 two people appeared in court indicating a potential objection to the petition. The court afforded them an opportunity to seek counsel and/or file an objection. Nothing has been filed since then. The petition is GRANTED, absent cogent objection. The Court will require the administrator to post a nominal bond of \$20,000, per local rule 4.25.

26-PRO-01048	Estate of Dennis Joseph Bossa	
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Line 16	Petitioner: Zhao, Hui (JEN, ROXANNE T.) Decedent: Bossa, Dennis Joseph Proposed Personal Representative: Zhao, Hui	Letters of Administration Hearing with ATA
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Tentative Ruling:

NO APPEARANCE

The petition will be continued to 12/31/2026 at 9:00 a.m to be heard with the PETITION TO DETERMINE ENTITLEMENT TO ESTATE PROPERTY. That petition asks the court to, among other relief, find that the pre-marital agreement which excludes petitioner from serving as Administrator, is invalid. This petition for probate cannot be decided until the court rules on the subsequently filed petition.



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26-PRO-01053	Estate of Richard Lance McDonald, III	
Line 17	Petitioner: FRIAS, SUSAN (Pro Se) Decedent: McDonald, Richard Lance, III (Pro Se) Proposed Personal Representative: FRIAS, SUSAN	Letters of Administration Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The petition is defective in that the caption does not indicate petitioner seeks full authority to administer the estate under the IAEA. The Court is prepared to waive that defect, because 1.) that fact is published, and 2) Item 2C properly indicates the same. However, other issues are: 1.) there needs to be some showing of due diligence in attempts to provide notice to decedent's father, or a declaration of due diligence without success. The court could, if sufficient basis is shown, waive notice. 2.) The Court will appoint a Guardian Ad Litem for decedent's two minor children, and 3.) If petitioner seeks solely to administer decedent's digital assets, rather than the full estate, a Petition for Letters of Special Administration might be more appropriate. If the petitioner wishes to proceed as such, an amended petition would need to be filed. The next hearing is November 20, 2026 at 9:00 a.m.

26-PRO-01054	Estate of Erminia Meier	
Line 18	Petitioner: Rakib, Yael (RIOS, LAUREN T.) Decedent: Erminia Meier Proposed Personal Representative: Rakib, Yael	Letters of Administration Hearing with ATA

Tentative Ruling:

APPEARANCE OPTIONAL

The petition for letters with limited authority is GRANTED absent cogent objection. Bond is fixed at \$60,000.

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26-PRO-01162	Conservatorship of James Arthur Whereat	
Line 19	Proposed Conservatee: Whereat, James Arthur Petitioner: Bellamy, Kandice (LINGYS, JULIA E.) Proposed Conservator: Bellamy, Kandice	Appointment of Temporary Conservator for Person and Estate
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) The Petition for Appointment of Temporary Conservator for Person and Estate is GRANTED absent cogent objection; Order required. Bond is waived.		

PRO124507	CONSERVATORSHIP OF KRISTI KANANI MORROW	
Line 20	Proposed Conservatee: MORROW, KRISTI KANANI Petitioner: Buckley, Tara (Pro Se) Conservatee: MORROW, KRISTI KANANI Conservator: BUCKLEY, TARA (Pro Se) Conservator: MORROW, MATTHEW K. (Pro Se) Brother: MORROW, JONATHAN (Pro Se) Brother: MORROW, MATTHEW (Pro Se) Brother: MORROW, SEBASTIAN (Pro Se) Payor: Payor Sister: MORROW, MALIA (Pro Se) Sister: MORROW, SAMANTHA (Pro Se) Sister: MORROW, TARA (Pro Se)	General Plan
Tentative Ruling: NO APPEARANCE Matter CONTINUED to November 12, 2026 at 9:00 a.m. for the filing of the Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC-356)		

Hearings Total: 20